2025 Division 22 Standards
School Board FAQ

This FAQ is intended to provide answers to the questions that local school board members frequently ask during districts' Division 22 Standards assurances reports. District leaders can use this document to prepare for their presentation or to provide responses to questions posed by board members during the meeting or in a follow-up. Any questions about this FAQ can be directed to Susan Payne, ODE's Education Standards and Systems Specialist.

1. **What is the local school board's responsibility with regard to district compliance with the Division 22 Standards?**

   The Division 22 Standards assurance process is a combined local and state accountability model that acknowledges the importance of the local school board (which has broad-ranging authority under Oregon's local control model) as well as direct reporting to ODE.

   OAR 581-022-2305 District Assurances of Compliance with Public School Standards requires that the district share its annual report on compliance with the community on or before November 1, by presenting the report to the school board of the district in an oral presentation at an open public meeting, allowing for public comment, and by posting the report on the district's webpage. The item may not be included on the consent agenda.

2. **Does the board need to take action on the Division 22 report after it has been presented?**

   OAR 581-022-2305 does not require the local school board to officially accept or approve the district's assurances. A board may adopt a district policy that requires such action.

3. **Does the opportunity for public comment have to be specific to the Division 22 report or does a more general opportunity for public comment meet the requirement?**

   The standard public comment process for an open, public meeting meets the requirement.

4. **What is the penalty or consequence if the district is out of compliance with one or more of the standards?**

   The district must submit a corrective action plan to ODE. ODE reviews the district's proposed corrective action plan and either approves or rejects it. If the plan is not approved as submitted, ODE contacts the district and provides technical assistance and support. The corrective action must be completed by the beginning of the next school year. If a district fails to come back into compliance after an opportunity for corrective action, ODE may withhold a portion of the district's State School Fund monies.
5. **Is there a consequence if we don't meet a standard two or more years in a row?**

If a district is unable to complete corrective action before the beginning of the next school year, the ODE Deputy Superintendent may grant an extension of up to 12 months. If the district fails to come back in compliance following an approved extension, the Deputy Superintendent may withhold funds.

6. **Does ODE ever check to make sure we are in compliance?**

   Prior to the deadline for completing corrective action, ODE requests verification from districts that they have followed and completed their approved plans. Typically, the request is for a brief update outlining the actions the district has taken to come into compliance; however, ODE may request that the district submit evidence. While desk audits and site visits were done in the past, currently ODE does not have the staff capacity to perform this type of comprehensive compliance monitoring for all of the standards in Division 22. Individual program staff may conduct their own audits and reach out to provide technical assistance on a specific rule or requirements.

7. **Why is the district reporting on compliance for the previous school year? Shouldn't we be reporting on current compliance?**
   For many of the rules, it's not possible to know whether the district was in compliance or not until the close of the school year. The instructional time rule is a good example. A district may have a planned calendar and schedule that meets the minimum number of hours of instructional time, but closures from inclement weather or other unplanned events might result in the district not meeting the required minimum by the end of the year. So, we report on the previous year to ensure that the report is accurate. ODE recommends that districts inform their local board if the current compliance status differs from what is being reported for the previous year and to put a corrective action plan in place as soon as possible.

8. **Does ODE only require districts to report on a subset of the standards each year?**

   Districts are required to report on all rules set forth in Oregon Administrative Rules Chapter 581, Division 22, with the following exceptions:
   - rules that have been waived by the State Board of Education
   - rules that are out of date but have not yet been removed from the Division (e.g. OAR 581-022-0107 Operational Plans for the 2022-23 School Year)
   - rules that do not currently require action (e.g. OAR 581-022-2130 Community Informed Information Gathering Process at Kindergarten).

9. **Why are the Essential Skills rules waived? Is this waiver specific to our district or is it statewide?**

The Essential Skills assessment requirements for graduation were initially waived for graduates beginning in 2020 due to the pandemic. This statewide waiver was extended through the end of the 2027-28 school year by the State Board of Education in response to the 2022 report mandated by Senate Bill 744 (2021) on Oregon's graduation requirements (entitled Community-Informed Recommendations for Equitable Graduation Outcomes), in which ODE recommended replacing the assessment of essential skills graduation requirement with an alternative accountability measure(s). The legislature has not yet taken action on this recommendation. Section 2 of the Essential Skills rule, which is the local performance assessment requirement, remains in effect and districts must report on compliance with this section.

10. How is the 2025 Accountability Act going to impact Division 22?

Senate Bill 141 (2025)—known as the 2025 Education Accountability Act— calls for a reimagined accountability system that emphasizes partnership, shared accountability, student outcomes, equity, transparency, and streamlined state oversight. In direct response to SB 141, ODE has developed an Accountability Implementation Action Plan to fulfill the statutory requirements of the bill and to drive meaningful, lasting improvements across Oregon's education system. One of the four workstreams outlined in ODE's Accountability Implementation Action Plan focuses on streamlining reporting. The first outcome identified for this workstream is to align reporting to the five Priorities for Student Success as identified in Oregon's Reimagined Accountability Framework (pg. 3), and this year's assurances report has been redesigned to meet this goal. The second identified outcome is to streamline processes for gathering information from school districts and other education partners. While work at ODE is underway to streamline reporting processes by 2027-28, at this time, the only significant change to the Division 22 Standards Assurance process for November 2025 is the updated organizational structure of the standards.

The bill also requires that "The Department of Education shall contract with a public or private entity to review the administrative rule requirements that must be met for a school district to be considered standard" and to identify:

- Standards that best support student outcomes and that should be prioritized by the department and districts
- Standards that make less significant contributions to the support of student outcomes and can be removed
- Effective methods for enforcing whether a district is standard.

ODE will submit a legislative report based on this review by December 15, 2026, which could result in future changes to the scope of the standards and methods of enforcement.

Other district specific questions board members often ask include:

- How long does it take to create this report?



- What is the process you go through to know if the district is in compliance? What evidence do you collect?